Judicial Practices and Procedures

Anastasia M. Norman, Circuit Judge
Susanne Butler, Judicial Assistant

Contact Information

Mailing Address: Indian River County Courthouse, 2000 – 16th Avenue, Vero Beach, FL 32960
Physical Address: Indian River County Courthouse, 2000 – 16th Avenue, Vero Beach, FL 32960
Telephone: 772-226-3374
Fax: (n/a)
E-mail: IRCJudge3@Circuit19.org

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A. Communications with the Judicial Office

- **Method of Communication:** IRCJudge3@Circuit19.org (Email is the preferred method of communication and will be responded to promptly). The subject line must contain the case number, case name, and relevant matter (e.g., 2025 CF 001234 – Doe v. Doe - 2-Hour Hearing Requested). No ex parte communication. Phone contact is also permitted at the phone number listed above.

- **Ex parte Communications:** All communications with the judicial office must comply with Canon 3 of the Code of Judicial Conduct, which prohibits a judge from initiating, permitting, or considering ex parte communications and from considering other communications outside the presence of the parties concerning a pending or impending proceeding, unless authorized by law. All parties must be copied on any e-mail directed to the judicial office, unless an ex parte communication is authorized by law.

- **Unsolicited Communications:** Unsolicited communications from non-parties

will not be considered by the court. Parties may only contact the judicial office in accordance with these practices and procedures.

- **E-Filing Portal Contact Information:** All attorneys and self-represented litigants must provide an e-mail address to receive signed orders electronically, unless excused. Fla. R. Gen. Prac. & Jud. Admin. 2.516. It is the responsibility of attorneys and self-represented litigants to update their contact information using Form 2.603 any time there is a change in the e-mail account registered for electronic service.

- **Response to Inquiries:** All inquiries will be responded to in a timely manner. Please do not send multiple e-mails on the same issue/same inquiry. E-mails will be responded to as soon as possible.

- **Other Communication Procedures:** No party or attorney shall otherwise communicate directly to the Court.

B. Scheduling Procedures

- **Court Schedule:** All hearings must be coordinated with opposing counsel. Failure to do so will result in the motion being stricken from the court's docket. The notice of hearing must reflect the hearing was coordinated and the amount of time reserved. All motions must be filed with the Clerk prior to scheduling a motion for hearing. 9:00 AM Hearing Slots COP/Bond Hearings; COP; and FELONY COP/BOND/SHORT MOTIONS are only for hearings that require 10 minutes or less and can be scheduled using the Court's online scheduling system – at "COP/Bond Hearings'; COP; and FELONY COP/BOND/SHORT MOTIONS slots only. Do not schedule on Special Set Hearing time slots. Time reserved for hearings will be strictly enforced. 5-10 minutes hearings must be scheduled at least 3 business days prior to the hearing date (unless agreed by all parties to schedule sooner, the parties must then contact the JA). The Court's calendars are posted online at https://slccjis.stlucieco.gov/attorney_calendar (instructions on scheduling are below). All hearings scheduled online must be noticed for hearing within three (3) business days. And if cancelled, the hearing must be cancelled online by Noon the day before the hearing if not going forward. A notice of cancellation should also be e-filed (with a copy sent to IRCJudge3@circuit19.org). Failure to follow these procedures may result in the loss of your online scheduling privileges. If you have any questions regarding these procedures, please do not hesitate to email: IRCJudge3@circuit19.org. If you have a matter that is time sensitive and there is no time available on the online calendar, you may contact the JA for assistance in scheduling the matter for hearing. Please do not contact the JA about scheduling an earlier time unless opposing counsel is in agreement and you have reviewed these procedures and the online calendar/schedule.

- **Scheduling Hearings via the online calendar:**

1. **All Hearings must be cleared with opposing counsel.** Good faith cooperation is expected from counsel and their support staff. Should counsel or their staff fail to respond within 3 business days, or refuse to cooperate in obtaining, or in setting a hearing, the difficulty should be specifically set forth - either in the motion or in the notice of hearing - and the hearing can then be set unilaterally – giving opposing counsel at least five (5) business days' notice of the hearing date (for 5-10 minute motions only). Fifteen (15) business days' notice of the hearing if over 10 minutes reserved. Failure to set out, with specificity, the difficulty of scheduling when unilaterally setting a hearing will result in the hearing being stricken by the Court.

2. **Special Request by Counsel for earlier hearing date – when time is not available on the online calendar***:* If the parties agree that a hearing on a time sensitive issue is needed, and there is no time available on the online calendar, please contact the JA for assistance in scheduling the matter for hearing (e-mail IRCJudge3@circuit19.org). Please state clearly in the email that there is no time available via the online calendar within the timeframe the parties are looking for, and the parties are jointly inquiring about earlier dates, per procedures. The email must state the parties agree the matter requires an earlier date and the amount of time needed. You should not send multiple requests for the same issue - the JA will respond in a timely manner, as quickly as possible.

3. **If scheduling a Motion**, the Motion must be filed prior to scheduling a hearing.

4. **Online Calendar**:
   a. Log on to https://slccjis.stlucieco.gov/attorney_calendar You must register to obtain your user id and password on the site; any issues relating to your login and/or use of the online calendar should be directed to: webmaster@circuit19.org).
   b. Click on case Scheduling;
   c. Enter County, Judge Norman's name, month & year in drop down fields;
   d. Click Available Hearing Time: View button and a screen will open showing all available hearing times – keep in mind hearing time may go quickly and multiple dates should be coordinated in case the first date is no longer available. Hearing time cannot and should not be reserved;
   e. Choose available dates/time slot under "COP"; "COP/Bond Hearing"; "FELONY COP/BOND/SHORT MOTIONS" or "Felony Hearings – 20 Minutes or Less." Whichever is appropriate. These are strictly for non-evidentiary motions. Counsel must schedule all evidentiary hearings through the JA.
   f. The Case Type is the Full Name of the Motion(s) being set for hearing (M/Early Termination of Probation, M/Recall B/W; COP; etc.); the Case Number is 25CFXXXXA & 25CFXXXA (enter all case numbers as needed); the style is State vs. John Smith—you must add the full name (First and Last) of the defendant. If scheduling a hearing for the same defendant with multiple case numbers, enter all case numbers under the same hearing slot. (One hearing slot for each defendant, not for each case number). Case No.'s may be abbreviated (i.e. 24CF111, 112, 25CF113, 114 etc.)

g. Any issues relating to your login and/or use of the online calendar should be directed to: webmaster@circuit19.org.

- **Notice of Hearing:** A notice of hearing must be filed within three (3) business days from the date the hearing was added to the online calendar. After filing a notice of hearing with the Clerk, a copy of the Notice of Hearing, along with the Motion must be immediately forwarded to the JA via e-mail to IRCJudge3@circuit19.org. Should a notice of hearing not be forwarded to the Judicial Assistant, the hearing may not be placed on the Court's docket.

- **Submission Deadlines:** Any materials that you would like the judge to consider prior to a hearing, including case law, memoranda of law, or evidence agreed to by opposing counsel, may be emailed to IRCJudge3@circuit19.org in advance of the hearing and copied to opposing counsel. Do not assume that if you have filed a memorandum or response that the Judge will review it, it must be emailed to IRCJudge3@circuit9.org with the case number and date of the hearing so that the Judge may have sufficient time to review.

- **Order of Proceedings:** Matters will be heard in the order they appear on the docket unless a special request is made to be called first, last etc.

- **Continuance Procedure:** An Unopposed Motion to Continue should be e-filed and a proposed order (WORD format), which must include the next docket call date, forwarded to the JA (IRCJudge3@circuit19.org) no later than end of business on the Friday prior to the docket call. No blank Orders will be accepted. The motion must state the age of the case and if the defendant is incarcerated, the number of days of incarceration. If the case is more than 180 days old, then the motion must state good cause for the continuance. Do not assume that if an unopposed motion is filed, that an order granting will be forthcoming. The Court will grant or deny based on the good cause listed, age of the case, incarceration of the defendant, etc. The parties are not excused unless an Order Granting is efiled and served. Counsel should not contact the JA asking if an Order has been entered/granted. This information can be found on the Clerk's docket. Such emails will not be responded to.

- **Cancelling Hearings:** All hearings scheduled online must be cancelled online by Noon the day before the hearing if not going forward. A notice of cancellation should also be e-filed (with a copy sent to IRCJudge3@circuit19.org). If a special set hearing is cancelled, an email to IRCJudge3@circuit19.org, along with a notice of cancellation must be sent as soon as possible. If the hearing is scheduled for over 20 minutes then you must have leave of court to cancel the hearing.

- **Zoom Appearance:** Zoom appearance is permitted as long as there is no testimony or evidence being offered. No motion or order is necessary. If appearance by a witness is needed at trial or evidentiary hearing, an agreed motion and proposed Order will be needed. If not agreed to, a hearing will be required and may be set at the 9am COP/Bond slots, if needed. **Zoom Link:** Meeting ID: 494 977 5734 Link: https://zoom.us/j/4949775734

- **Change of Pleas (COPs, including VOP).** The plea form must be fully completed and executed prior to the COP hearing. Simply go online and find hearing time under "Felony Cop/Bond/Short Motions" or "COP/Bond Hearing" only, confer with opposing counsel to coordinate and schedule the appropriate time online (reserve sufficient time if scheduling an open plea). E-file your notice of hearing and provide a copy to the JA, along with the Motion. **Do not schedule 5-10 minute COPs during Felony Hearings – 20 Minutes or Less slots – instead schedule at a 9:00 a.m. hearing slot**.

- **Bond Hearings and Short Motions (10 minutes or less)**. When scheduling a bond motion or short non-evidentiary motion, the motion must be e-filed with the Clerk prior to scheduling your motion. Simply go online and find hearing time under "Felony Cop/Bond/Short Motions" confer with opposing counsel to coordinate and schedule the appropriate time online (do not reserve time, see first paragraph above). E-file your notice of hearing. E-mail the motion, notice of hearing (.pdf is fine), and a proposed order (WORD format) to IRCJudge3@circuit19.org at least three (3) business days prior to the hearing with the style of case and hearing date in the subject line/email. E-file your responsive memos or pleadings with the Clerk and send the JA a copy as well @ IRCJudge3@circuit19.org. All motions require scheduling and notice at least 3 business days prior to the hearing (except as noted regarding unilaterally set hearings). Counsel who filed the motion must submit a proposed order at least three (3) business days prior to the hearing (no generic orders – all proposed Orders must have the relief requested – in WORD format).

- **Cooperation of counsel (10-Minute Motions or Less):** If counsel does not cooperate within a reasonable timeframe (3-business days), the requesting party may unilaterally set a hearing giving a 5-business day notice to the opposing counsel who failed to cooperate. The efforts made to obtain cooperation, and lack of cooperation, must be described in the notice of hearing. Failure to follow this procedure may result in the hearing being stricken by the Court. If an attorney is out of the office and cannot respond, this paragraph does not apply.

- **Special Set Bond hearings (20-Minutes or Less)**. Special set motions bond hearings are to be set online at least 3 business days prior to the hearing, and must be coordinated with opposing counsel. The notice of hearing must be filed at least 3 business days prior to the hearing (unless agreed by all parties to schedule sooner). As with any hearing, please confer with opposing counsel to determine the length of time that will be needed before adding a hearing to the calendar. Please do not set for rehearing any motion to set bond, reduce bond or otherwise establish pretrial release conditions for any defendant in any case in which those matters have already been heard and ruled upon by any other judge; unless there has been a change in circumstances. judicial reassignment is not a change in circumstances.

- **Special Set Motion Hearings Less than 20 min.** Any other non-evidentiary **motion hearing** that requires over ten (10) minutes, but less than twenty (20) minutes, can be scheduled using the Court's online scheduling system at the "Felony Hearings – 20 Minutes or Less", hearing slots. All hearings must be coordinated with opposing counsel. The notice of hearing must reflect the hearing was coordinated and the agreed upon time reserved for the hearing. E-file responsive memos or pleadings with the Clerk and send us a copy as well @ IRCJudge3@circuit19.org as least 3 business days prior to the hearing.

Motions That Must Be Set By Contacting JA:

- **Motions Requiring Over 20-Minutes; Motion to Suppress; and all Evidentiary Hearings:** Do not schedule using the online calendar. These types of motions must be specially scheduled through the Judicial Assistant. Counsel may consult the online calendar for available dates set aside for special set motions (*'Felony Evidentiary Hearings / & Spec. Set by Court Only - Per Procedures),* and if counsel has already agreed on one of the dates available, please include this in your hearing request email. The scheduling party must first communicate with opposing counsel to determine the amount of time needed for the hearing prior to contacting the JA. Opposing counsel must be included when emailing the JA. A copy of the e-filed motion should be attached to the e-mail requesting hearing time. Once the amount of time is determined, you may contact the Judge's Office, via email, indicating the agreed upon time needed (i.e., "Motion _____/Request ___ Min./Hour Hearing"). Opposing counsel/counsel's office must be included when emailing the JA. Your email must state clearly the motion(s) title, agreed upon time needed, and that the parties have agreed to time requested for the hearing. If counsel cannot agree, please state that in the email. Any request inconsistent with this procedure will receive a response to resubmit, per procedures. The JA will then provide potential dates to coordinate with opposing counsel. Counsel should not copy this office with emails which attempt to schedule a hearing. Only send a final email confirming the date. Failure to confirm a date will result in the hearing not being scheduled. Hearing time will not be given over the phone.

- **Evidentiary Hearings:** The notice of hearing must reflect the motion hearing is evidentiary and indicate the amount of time reserved. The time reserved will be strictly enforced. Any request inconsistent with this procedure will receive a response to resubmit, per procedures. Additional motions may not be "piggy-backed" by cross-notice unless counsel first confirms with opposing counsel, and the Judge's Judicial Assistant, that sufficient additional time can be reserved to hear them.

- **Cancellation of Hearings:** Attorneys must obtain leave of court to cancel any motions requiring over 20 minutes, motions to suppress and all evidentiary hearings.

C. Remote Appearance

- **Remote Appearance Procedure:** Zoom appearance is permitted as long as there is not testimony or evidence. No motion or order is necessary. If appearance by a witness is needed at trial or evidentiary hearing, an Agreed Motion and proposed Order will be needed. If not agreed to, a hearing will be required and may be set at the 9am COP/Bond slots, if needed.

- **Docket Call (Including VOP Docket Call).** Counsel must appear either in person or via ZOOM. Attorneys appearing in person will be called prior to attorneys appearing via Zoom. Defendants must appear in person.

- **Platform Used:** Zoom

- **Platform Meeting ID#:** Meeting ID: 494 977 5734 Link: https://zoom.us/j/4949775734 (see final page for complete Zoom information)

- **Requirements:** No permission is necessary for attorneys to appear via Zoom for non-evidentiary and non-testimonial hearings including docket calls. Defendants must appear in person for Docket Calls. If Zoom appearance is requested for any attorney or party for an evidentiary or testimonial hearing, then a motion must be filed, and if there is no agreement, a hearing must be scheduled.

- **Technology Needs:** The attorney is responsible for providing the Zoom link to his or her client or witness and must be prepared with digital copies of evidence if necessary for the hearing.

D. Submission of Orders and Judgments

- **Format:** All Proposed Orders must be submitted in WORD format.

- **Submission Method:** IRCJudge3@circuit19.org

- **Deadline for Submissions:** 3-business days prior to the scheduled hearing.

E. Courtesy Copies of Case Law and Other Documents

- **When Required:** Any materials that you would like the judge to consider prior to a hearing, including case law, memoranda of law, or evidence agreed to by opposing counsel, may be emailed to IRCJudge3@circuit19.org in advance of the hearing and copied to opposing counsel. The Court does not require a formal memorandum to be submitted and highlighted cases or an outline of caselaw is permissible.

- **Format:** PDF, highlighted as needed

- **Submission Method:** IRCJudge3@circuit9.org

- **Deadline for Submissions:** Courtesy copies are preferred be delivered to the court three business days before any evidentiary proceeding, or as soon after that as is practicable.

F. Emergency and Other Urgent Matters

- **Requirements:** If an emergency situation arises, counsel may request that a hearing be set on short notice. The body of the motion must contain a detailed explanation of the circumstances constituting the emergency as well as the substance of the motion. The motion must be emailed to the Court (IRCJudge3@circuit19.org) before a hearing will be set.

- **Scheduling:** The Court will review the motion and, if it is determined an emergency exists, the JA will contact counsel to set the hearing. Please do not contact the JA for a status, the emergency motion will be responded to timely, as is possible.

G. Exhibits for Evidentiary Proceedings

- **Submission Method:** IRCJudge3@circuit19.org

- **Format:** Exhibits must be submitted to the clerk of court in paper format – counsel should contact Clerk for proper labeling. All attorneys and self-represented litigants must bring sufficient copies of each exhibit for the clerk, the court, and each party to review during the hearing or trial. Exhibits must be labeled in the format required by the Clerk of Court.

- **Deadline for Submissions:** Evidence may be submitted during the hearing or trial. If the parties agree that he Court may view evidence prior to a hearing (such as a video or transcript), such evidence may be emailed to the Court in advance of the hearing and copied to opposing counsel at IRCJudge3@circuit19.org. The Court will make its best efforts to review any agreed evidence submitted in advance as to make efficient use of time during the hearing.

H. Pretrial Procedures and Conferences

- **Case Management Conference.** The Court holds regular docket calls in lieu of case management conferences. If a specific case management conference is requested, then such request can be made via email to IRCJudge3@circuit19.org.

- **Status Conference:** Any party may schedule a status conference when a case requires one.

- **Requirements:** Email if there is a specific request for a case management conference or status conference. Such hearng may also be set via the online calendar via the procedures outlined in Section B above.

- **Scheduling:** Pretrial/Suppress Motions. All pretrial motions, motions to suppress and pretrial objections (with the exception of motions in limine) shall be made or filed at least 30 days prior to trial and set for hearing prior to the trial date. The motion should be e-filed with the Clerk prior to scheduling your motion. Hearings on Motions to Suppress must be set at least 20 days in advance. These issues will be deemed waived if not filed and heard in accordance with these procedures.

- **Other Procedures Relating to Pretrial Procedures and Conferences:** Inmates/Defendants. It is the attorney's responsibility to advise the JA (IRCJudge3@circuit19.org) if an inmate needs to be transported for a hearing or Docket Call at least 24 hours prior to the hearing. It will be the responsibility of the defendant and attorney to ensure the defendant's presence at future hearings, as the Clerk will not provide reminder cards.

- **Docket Call.** Private Attorney & Public Defender docket call is typically every 7

weeks. Please consult online calendar for dates. Counsel must appear either in person or via ZOOM. Attorneys appearing in person will be called prior to attorneys appearing via Zoom. Defendants must appear in person. Plea negotiations and client discussions shall take place before Court commences. Inmates will not be transported unless requested in advance and all defendants not in custody must appear unless excused prior to Docket Call. Changes of plea will be accepted after Docket Call, if time permits. Defendant's attendance at docket call is required unless specifically excused by the Court prior to docket call; defendant's appearance at docket call may be waived by e-filing a Waiver of Appearance with the Clerk's office at least three (3) business days prior to docket call. Counsel should have available a copy of the waiver to present to the Court at Docket Call, if needed. Failure to appear when the case is called or failure of counsel to appear with a copy of the Waiver of defendant's appearance at Docket Call will result in the issuance of a Bench Warrant without bond; unless counsel requests, and the Court agrees, to recall the case at the end of the docket (with counsel present). Defense counsel is responsible for having their clients in the courtroom when their case is called if a Waiver of Appearance has not been filed. Change of pleas may be held at the end of docket if time permits.

- **Continuance Procedure:** An Unopposed Motion to Continue should be e-filed and a proposed order (WORD format), which must include the next docket call date, forwarded to the JA (IRCJudge3@circuit19.org) no later than end of business on the Friday prior to the docket call. No blank Orders will be accepted. The motion must state the age of the case and if the defendant is incarcerated, the number of days of incarceration. If the case is more than 180 days old, then the motion must state good cause for the continuance. Do not assume that if an unopposed motion is filed, that an order granting will be forthcoming. The Court will grant or deny based on the good cause listed, age of the case, incarceration of the defendant, etc. The parties are not excused unless an Order Granting is efiled and served. Counsel should not contact the JA asking if an Order has been entered/granted. This information can be found on the Clerk's docket. Such emails will not be responded to.

I. Setting Case for Trial

- **Procedure: Mini-Docket/Jury Selection.** All cases that are announced ready for trial will be set on the Court's Mini Trial Docket ("Mini Docket") which will generally occur the week after docket call. Opposing attorneys are encouraged to communicate prior to the Mini Docket as to what trial week the trial should be set (counsel should consult the PDF calendar available on the Court's website to determine trial weeks), any pretrial stipulations and possible resolution of the case. Attorneys must also check witness availability prior to the Mini Docket. Change of pleas may be heard at the Mini Docket and cases that are ready for trial will be set for jury selection from the Mini Docket. Once a case is set for jury selection, stipulated motions to continue will not be accepted and only emergency motions to continue will be entertained. All substantive motions not filed and heard prior to the case being set for jury selection will be deemed waived (with the exception of motions in limine). All attorneys and parties must appear in-person for the Mini-

Docket call unless permission is specifically given by the court for a party or attorney to appear via Zoom.

- **Notice Procedure:** Parties are expected to be available during the entire trial week when set for a jury selection date. Case scheduling as to specific days during the trial week will be done at jury selection.

- **Jury Instructions.** Prior to closing statements, proposed jury instructions and verdict form shall be emailed to IRCJudge3@circuit19.org in Word format.

J. Forms

- **Access:** See website for forms

- **Usage:** Division forms must be used for all relevant filings.

K. Other Division Procedures

- **ADA Accommodations:** If you require an ADA accommodation, please contact Court Administration at 772-807-4370 Court Administration - Circuit19

- **Interpreter Requests:** If an interpreter is needed for a hearing or trial, please contact Court Administration. Visit the Circuit website for further information: Court Interpreters - Circuit19

- **Court Technology:** Please visit the Circuit website for further information: Technology - Circuit19

Judge Norman's Zoom Information

Link: https://zoom.us/j/4949775734

Meeting ID: 494 977 5734

One tap mobile
+17866351003,,4949775734# US (Miami)
+13126266799,,4949775734# US (Chicago)

Join by SIP 4949775734@10.212.72.192

Join instructions:
https://zoom.us/meetings/4949775734/invitations?signature=kE07V6F7_YovmUjIVSDnB_vPLXqF3kgp90IclAhtcU8

ZOOM BEHAVIOR

DO:

✓CONNECT EARLY: Appear for your hearing 10 minutes early. You will be in the virtual waiting room

until you or your case is called.
✓IDENTIFY YOURSELF: Rename yourself on Zoom to show your actual name.
✓DRESS APPROPRIATELY: All participants must be fully dressed in proper courtroom attire—no pajamas, sunglasses or hats.
✓ACT AS IF YOU WERE AT THE COURTHOUSE: Behave as if you were attending Court in person. The same rules that apply to a live hearing in the courtroom apply to virtual hearings.
✓BE PREPARED: Have pen and paper readily accessible to write down important dates, times, and information regarding your case. You may also want a calendar to coordinate future Court appearances.
✓SPEAK TO THE CAMERA: When speaking, try to look directly at the webcam, not the screen. Position your camera at eye level and be mindful of what is behind you (as it will be visible to everyone).
✓BE ALONE: Remain seated in one quiet space, without anyone else present. If someone walks in, identify them immediately.
✓STAY MUTED: Mute yourself when you are not speaking to avoid background noise.
✓STAY QUIET: Participants should speak one at a time and pause prior to speaking in the event that there is video/audio lag.
✓PRACTICE: Become familiar with & practice Zooming prior to your hearing. Learn to connect your audio and check your lighting. To testify, you must appear by both VIDEO AND AUDIO so be familiar with both functions.

DON'T:
✓NO gum, no eating, no smoking or vaping.
✓NO minor children. Minors are NOT permitted to attend or be present in the room where any participant is attending Court. Persons with minor children should take all reasonable steps to ensure they are not exposed to the proceedings.
✓TURN OFF any electronic devices, especially phone ringer/notifications/alerts; do not communicate during the proceeding without the Court's permission and do not record the proceedings.
✓NO DRIVING: You must not attend or observe court proceedings while driving or operating heavy machinery. Your full attention is required